

Court No. - 29

Case :- WRIT - C No. - 39781 of 2018

Petitioner :- Naresh Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Tarun Gaur, Deepak Kumar Singh

Counsel for Respondent :- C.S.C., Awadhesh Kumar Saxena

Hon'ble Pankaj Mithal, J.

Hon'ble Pankaj Bhatia, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri A.K. Saxena, learned counsel appearing for the respondents no. 2 and 3.

The petitioner is aggrieved by the electricity bill-cum-disconnection notice, (Annexure-1 to the writ petition) whereby a sum of Rs. 1,06,029/- has been demanded from the petitioner.

The submission of learned counsel for the petitioner is that under the demand notice only a sum of Rs. 55,717/- has been demanded. He, however, submits that petitioner is ready and willing to make the payment of the entire amount and that his electricity connection be restored.

In other words, petitioner wants to make payment of the outstanding dues in installment. The facility of installment can be granted to the petitioner by the Executive Engineer as per the provision of Section 6.14 of the Electricity Supply Code, 2014.

In view of the above provision, we dispose off the writ petition with liberty to the petitioner to make an appropriate application for grant of facility of

installment to the Executive Engineer within a period of two weeks from today. On the aforesaid application being filed the Executive Engineer (respondent no. 2) shall pass appropriate speaking order fixing the installments for the payment of the outstanding amount. It goes without saying that the Executive Engineer shall also consider restoration of the electricity connection of the petitioner on the payment of some initial amount, as may be considered proper.

With the aforesaid observation, the writ petition stands disposed off.

Order Date :- 4.12.2018
Puspendra